

STATE OF NEW YORK

10088--A

IN ASSEMBLY

January 30, 2026

Introduced by M. of A. KASSAY, SCHIAVONI, CONRAD, K. BROWN -- read once and referred to the Committee on Economic Development -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the cannabis law, in relation to requiring prospective licensees of cannabis licenses to submit a formal attestation of compliance with local zoning laws, land-use regulations, and municipal code requirements and proof of local municipal compliance to the Cannabis Control Board when applying for an OCM Cannabis license, and give municipalities the ability to request an extension of time to submit an opinion on the prospective licensee application

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 61 of the cannabis law is amended by adding a new subdivision 4 to read as follows:

4. As a condition of eligibility for any license issued pursuant to this article, an applicant shall submit formal attestation affirming that the applicant's proposed premises, as identified by the section, lot, and block, and the planned uses for the premises are in compliance with all applicable local zoning laws, land-use regulations, and municipal code requirements. The applicant shall submit, in a form prescribed by the board, attestation of compliance with the laws set forth by the governing municipality in which the premises would be located, including but not limited to certifications of zoning compliance, necessary local permits, or other documentation as required by the municipality. The board shall not consider or approve any application lacking such attestation of municipal compliance.

§ 2. Subdivision 4 of section 76 of the cannabis law is amended to read as follows:

4. When a city, town, or village, and in New York city a community board, expresses an opinion for or against the granting of such registration, license or permit application, any such opinion shall be deemed part of the record upon which the office makes its recommendation to the board to grant or deny the application and the board shall respond in

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 writing to such city, town, village or community board with an explana-
2 tion of how such opinion was considered in the granting or denial of an
3 application; provided where a city, town, village or community board
4 request the board for an extension of time to submit an opinion due to
5 the applicant's notification not being addressed directly to the clerk
6 of the city, town, village or community board in accordance with subdi-
7 vision two of this section, the board shall grant the city, town,
8 village or community board one extension of thirty days to submit an
9 opinion for or against the granting of such registration, license or
10 permit application.

11 § 3. This act shall take effect on the ninetieth day after it shall
12 have become a law.